

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
OF KANSAS CITY**

**JASON McGUIRE & CHEYNET
McGUIRE**

20832 Brandt Road
Tonganoxie, KS 66086

Plaintiffs,

v.

UNITED STATES OF AMERICA

Serve:
Attorney General of the United States
950 Pennsylvania Avenue, NW
Washington, DC 20530

Defendant.

Case No.

Federal Tort Claims Act

JURY TRIAL DEMANDED

COMPLAINT

COMES NOW Plaintiffs Jason McGuire and Cheynet McGuire, by and through counsel, and for their cause of actions against Defendant United States of America, allege and state as follows:

PARTIES & AGENCY

1. Plaintiff Jason McGuire is and was at all times relevant hereto, a resident of the State of Kansas.
2. Plaintiff Cheynet McGuire is and was at all times relevant hereto, a resident of the State of Kansas.
3. Plaintiff Jason McGuire and Plaintiff Cheynet McGuire are and were at all times relevant hereto, legally married.
4. Defendant United States of America (“USA”) is a government entity which has military bases throughout the United States and, in particular, at Fort Leavenworth, Kansas.

JURISDICTION & VENUE

5. Plaintiffs' Complaint involves injuries and damages sustained in an automobile accident on June 20, 2016 at Fort Leavenworth, Kansas within the District of Kansas.

6. This is a claim under the Federal Tort Claims Act ("FTCA"), pursuant to 28 U.S.C. §1346(b) and 28 U.S.C. §2671 *et seq.* for damages sustained by Plaintiff.

7. Plaintiff alleges that Defendant USA's, and more specifically the Department of the Army's, employees and agents, acting within the course and scope of their employment for Defendant USA, negligently and carelessly caused Plaintiff's personal injuries and Plaintiffs' damages as more fully set forth hereinafter.

8. Before filing this complaint, Plaintiff Jason McGuire submitted an administrative tort claim SF-95 to the Department of the Army alleging damages for personal injuries and property damage caused by Department USA's employees. This administrative tort claim was received by the Department of Army on May 23, 2018.

9. Before filing this complaint, Plaintiff Cheynet McGuire submitted an administrative tort claim SF-95 to the Department of the Army alleging property damage and damages caused by Defendant USA's employees as a result of the injuries to her husband, Jason McGuire. This administrative tort claim was received by the Department of the Army on May 23, 2018.

10. On July 6, 2022, both Plaintiff Jason McGuire's and Plaintiff Cheynet McGuire's administrative tort claims were denied.

11. As such, Plaintiffs' Complaint is being filed within six months after receiving the denial in compliance with the Federal Tort Claims Act 28 U.S.C. §2401(b) and 2675(a).

12. Jurisdiction of this Court is founded on the provisions of 28 U.S.C. §1346(b) and 28 U.S.C. §2671 *et seq.*

FACTS OF THE OCCURRENCE

13. On June 20, 2016, at approximately 12:00 p.m., Plaintiff Jason McGuire was in his 2003 Dodge Ram 1500 pickup truck and was driving northbound on Sheridan Street in Fort Leavenworth, Kansas, and was stopped waiting for traffic to clear to make a left-hand turn into the Brunner Gun Range.

14. On June 20, 2016, Daniel Neuhold was an employee, agent and/or servant of Defendant United States of America, working within the course and scope of his employment and/or agency with Defendant USA, specifically the Department of the Army, while he was driving Defendant's vehicle at approximately 12:00 p.m.

15. At the aforementioned time and place, Defendant USA's employee and agent, Daniel Neuhold, was driving Defendant USA's 2015 Ford Transit van northbound on Sheridan Street in Fort Leavenworth, Kansas.

16. At the aforementioned time and place, Defendant USA's agent, Daniel Neuhold, caused a collision with Plaintiff's vehicle resulting in him suffering serious injury that required medical treatment.

17. At the aforementioned time and place Defendant USA, by and through its employee and/or agent acting within the course and scope of his employment or agency, was careless, negligent and/or at fault in one or more of the following respects:

- a. He followed Plaintiff too closely;
- b. He failed to stop or swerve in time to avoid colliding with the rear of Plaintiff's vehicle;

- c. He caused his vehicle to come into collision with rear of Plaintiff's vehicle;
- d. He failed to keep a careful lookout;
- e. He failed to yield the right of way;
- f. He was driving at an excessive rate of speed;
- g. He knew or by the use of the highest degree of care could have known that there was a reasonable likelihood of collision due to his failure to yield the right of way.

COUNT I

18. Plaintiff Jason McGuire hereby incorporates by reference Paragraphs 1 through 17 as if more fully set out herein.

19. As a direct and proximate result of the carelessness, negligence and/or fault of Defendant USA and its employee and/or agent, as described above, Plaintiff sustained serious physical injuries, which are permanent and progressive in nature, including, but not limited to, injuries and damages to his head, neck, back and eye, as well as a traumatic brain injury.

20. As a further direct and proximate result of the aforesaid negligence of Defendant USA's employee's and/or agent's actions, as described above, Plaintiff has suffered and will continue to suffer damages including, but not limited to, past and future medical care and treatment.

21. As a further direct and proximate result of the aforesaid negligence of Defendant USA's employee's and/or agent's actions, as described above, Plaintiff has suffered and will continue to suffer damages including, but not limited to, past and future limitations of his daily activities.

22. As a further direct and proximate result of the aforesaid negligence of Defendant

USA's agent's actions as described above, Plaintiff has suffered and will continue to suffer damages including, but not limited to, past and future pain and suffering.

23. As a further direct and proximate result of the aforesaid negligence of Defendant USA's agent's actions as described above, Plaintiff has suffered and will continue to suffer damages including, but not limited to, past and future emotional distress and mental anguish.

24. As a further direct and proximate result of the aforesaid negligence of Defendant USA's agent's actions as described above, Plaintiff has suffered and will continue to suffer damages including, but not limited to, past and future loss of enjoyment of life.

25. As a further direct and proximate result of the aforesaid negligence of Defendant USA's agent's actions as described above, Plaintiff has suffered and will continue to suffer past and future lost income and loss of an earning capacity.

26. As a further direct and proximate result of the aforesaid negligence of Defendant USA's agent's actions as described above, Plaintiff has suffered property damage to his vehicle.

27. All of Plaintiff's injuries, disabilities, infirmities and damages are permanent, painful, and progressive in nature and extent.

28. Furthermore, Plaintiff is currently married and was at all times herein mention married, to Cheynet McGuire and, as a result of the negligence of Defendant USA as aforementioned, has at times been unable to fulfill his role and duties as a husband, and will in the future be unable to fulfill his role and duties as a husband, and his spouse Cheynet McGuire has suffered a loss of consortium.

WHEREFORE, Plaintiff prays for a judgment against Defendant United States of America for such sum in excess of \$75,000 as will fairly and justly compensate him for his damages and his costs herein, and for such other relief as the Court deems just and proper.

COUNT II

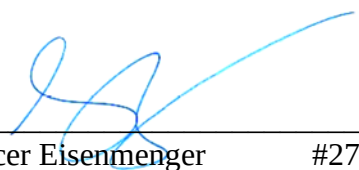
29. Plaintiff Cheynet McGuire hereby incorporates by reference Paragraphs 1 through 28 as if more fully set out herein.

30. Plaintiff Cheynet McGuire, through her husband, Plaintiff Jason McGuire, is hereby making a claim for loss of consortium as a result of the above-described negligence and injuries to her husband.

WHEREFORE, Plaintiff prays for a judgment against Defendant United States of America for such sum in excess of \$75,000 as will fairly and justly compensate her for her damages and her costs herein, and for such other relief as the Court deems just and proper.

Respectfully submitted,

**FOWLER PICKERT
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